

22CHCV01034 22CHCV01034

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Case Number: 22CHCV01034 Hearing Date: September 23, 2026 Dept: F43

Dept. F43

Hearing Date: 09-23-26

Case # 22CHCV01034, 23CHCV02673, Bruch,
et al. v. Prince, et al.

Trial Date: None set.

DEMURRER

MOVING PARTY:

Defendant Plant Works Group, Inc. (Doe 1)

RESPONDING PARTY: Plaintiff Isidro Candelario

RELIEF REQUESTED

Order sustaining defendant Plant Works Group,
Inc.'s demurrer to the First, Second, and Third causes of action in plaintiff
Candelario's Complaint.

RULING: Demurrer is sustained with leave to amend.

SUMMARY OF ACTION

This is a consolidated matter involving five
separate cases which arise from an explosion and fire that occurred on October

18, 2021 at a building located at 8423 North Canoga Avenue (subject property). The instant ruling involves Case No. 23CHCV02673, Isidro Candelario v. Randall Senter, et al. On September 5, 2023, plaintiff Isidro Candelario filed a complaint for injuries and damages suffered at the October 18, 2021, explosion and fire, asserting (1) negligence; (2) strict liability (ultrahazardous activity); (3) premises liability; (4) strict product liability - design defect; (5) strict product liability - manufacturing defect; (6) strict product liability - failure to warn; and (7) negligence product liability.

Plaintiff Candelario alleges defendants Canna Systems Corp., Canna Systems Holding, Inc., Conseiller, LLC, RX-Xtracts, LLC, T-Holdings, LLC and Does 6 through 50 caused the explosion and fire by operating an unsafe, and potentially illegal, cannabis extraction, distillation, and conversion operation. (Compl. ¶ 4.) The property is owned by defendants the Senter/Prince Trust 2022 and a defendant Doe Trust. (Id. ¶ 5.) Defendants Randall Senter, Lynn Prince, and a Does 1 through 5 are administrators of the defendant trusts. (Id. ¶¶ 5, 20.) The property owners knew or should have known, about the extraction, distillation, and conversion operation on the subject property and the dangerous practices and innumerable safety violations being committed by defendants Canna Systems Corp., Canna Systems Holding, Inc., Conseiller, LLC, RX-Xtracts, LLC, T-Holdings, LLC and Does 6 through 50. (Id. ¶ 28.) Yet, the property owners did nothing to discourage the operation or request that the unsafe practices be stopped or done with proper safety measures in place. Plaintiff was present the day of the explosion performing handyman work on a loft within the premises. (Id. ¶ 7.) As a result of the defendants' conduct, an explosion and fire occurred, and plaintiff Candelario sustained significant, life-changing, permanent injuries, including but not limited to severe second- and third-degree burns requiring grafts, a traumatic brain injury, permanent spine injuries including herniations/bulges in the cervical and lumbar spine requiring surgery, and permanent ear injuries resulting in tinnitus and hearing loss.

On May 20, 2026, plaintiff Candelario identified defendant Doe 1 as Plant Works Group, Inc.

On August 20, 2026, defendant Plant Works Group, Inc. (Plant Works) filed the instant demurrer to the Candelario Complaint's First, Second, and Third Causes of Action as uncertain and for failing to state a claim. Plaintiff Candelario (Plaintiff) opposed on September 8, 2026, and Plant Works replied on September 16, 2026.

MEET AND CONFER

Before filing a demurrer, the parties must

meet and confer “in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a).) The moving party must file and serve a meet

and confer declaration stating either: (1) the means by which the parties met and conferred, that the parties did not reach an agreement resolving the issues raised in the demurrer; or (2) that the party who filed the pleading subject to the demurrer failed to respond to the meet and confer request or failed to meet and confer in good faith. (Code Civ. Proc., §§ 430.41, subd. (a)(3).)

Counsel met and conferred directly about the issues raised in defendant Plant Works’ demurrer, but the parties did not come to an agreement. (Declaration of Robert A. Hufnagel ¶ 2.)

ANALYSIS

A. Demurrer

A party may respond to a pleading against it by demurrer based on one or more of eight enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action” and is uncertain, meaning “ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subds. (e), (f).) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) The grounds for demurring must be apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law[.]” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has

been stated. (Picton v. Anderson
Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

1. Plaintiff's

First, Second, and Third causes of action fail to adequately and clearly allege a theory of liability against defendant Plant Works as defendant Doe 1.

Defendant Plant Works contends Plaintiff's allegations are uncertain concerning Plant Works' role in the underlying causes of action and allegations. According Plant Works, Plaintiff fails to allege that Plant Works, as Doe 1, or Does 2 through 5 owned, operated, or managed the subject property, that Doe 1 played a role in the property, that Doe 1 owed a duty, or any negligent act demonstrating Doe 1's involved in the activities that led to the fire or was engaged in any alleged ultra-hazardous activity.

To state a claim for negligence, the plaintiff must establish that (1) defendant owed plaintiff a legal duty of care, (2) defendant breached the legal duty, and (3) the breach proximately caused plaintiff's damages or injuries.

(Romero v. Los Angeles Rams (2023) 91 Cal.App.5th 562, 567; Miranda v. Bomel Construction Co., Inc. (2010) 187 Cal.App.4th 1326, 1335.)

The elements of premises liability mirror those for negligence. (Nicoletti v. Kest

(2023) 97 Cal.App.5th 140, 145.) To

establish premises liability, plaintiff must also allege that: (1) defendant was the owner, occupier, or lessor of the premises; (2) defendant was negligent in the use, maintenance or management of the premises; and (3) the negligence caused the injury, damage, loss, or harm to plaintiff. (Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619 ["Premises liability is a form of negligence[.]"]; see also Pultz v.

Holgersen (1986) 184 Cal.App.3d 1110, 1116-1117 [stating complaint for premises liability based upon negligence is not subject to strict pleading requirements and may be generally pled]; Barnes v. Black (1999) 71 Cal.App.4th 1473, 1478 ["A landowner owes a duty to exercise reasonable care to maintain his or her property in such a manner as to avoid exposing others to an unreasonable risk of injury."]; Nicoletti, supra, 97 Cal.App.5th at pp. 146-147 [landowners' duty of care is not negated if it is foreseeable that someone might choose to encounter the condition due to necessity or other circumstances].) A dangerous condition

exists where the landowner was negligent in the use or maintenance of their property. (See *Hassaine v. Club Demonstration Services, Inc.* (2022) 77 Cal.App.5th 843, 852 [“By inviting the public to its store, an owner or possessor has the duty ‘to exercise ordinary care and prudence to keep the aisles and passageways of the premises in and through which, by their location and arrangement, a customer in making purchases is induced to go, in a reasonably safe condition so as not unnecessarily to expose the customer to danger or accident.’”].)

An activity is ultrahazardous or abnormally dangerous for purposes of strict liability “if it (a) necessarily involves a risk of serious harm to the person, land, or chattels of others which cannot be eliminated by the exercise of the utmost care, and (b) is not a matter of common usage.” (*Smith v. Lockheed Propulsion Co.* (1967) 247 Cal.App.2d 774, 785 [quoting Rest.2d Torts, § 520].) Courts consider the six factors set forth in the Restatement Second of Torts section 520 to determine whether an activity is ultrahazardous: (a) the existence of a high degree of risk of some harm, (b) the likelihood that resulting harm will be great, (c) the inability to eliminate the risk through reasonable care, (d) the extent to which the activity is not a matter of common usage, (e) the inappropriateness of the activity to the place where it is carried on, and (f) the extent to which its value to the community is outweighed by its dangerous attributes. (*Carmichael v. Cafe Sevilla of Riverside, Inc.* (2025) 108 Cal.App.5th 292, 299 [Rest.2d Torts, § 520].) Whether an activity is abnormally dangerous is determined by the court upon consideration of all the listed factors and the weight each merits based on the facts in evidence, and this determination generally cannot be made on demurrer. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 906-907.) Liability does not depend on the defendant’s knowledge of the danger and applies even where the utmost care is exercised to prevent harm. (*Garcia v. Est. of Norton* (1986) 183 Cal.App.3d 413, 420.)

The finds the Complaint is uncertain as to Plant Work’s role and conduct and fails to allege sufficient facts to state Plaintiff’s three causes of action.

According to the Complaint, defendants Senter/Prince Trust 2002 and Doe Trust owned and controlled the subject property. (Compl. ¶ 20.) Plant Works is an administrator, executor, or trustee of the Senter/Prince Trust 2002 and the Doe Trust. Plant Works leased, subleased, and provided

access to the subject property to defendants, including Canna Systems Holding, Inc. (Id. ¶ 21.) Canna used the subject property for cannabis extraction, distillation, and conversion of an extremely hazardous risky operation which even when done properly and with all safety precautions in place was an extremely hazardous and risky operation. (Id. ¶¶ 24-25.) Because of the level of risk, the process is very heavily regulated. (Id. ¶ 24.) But Canna did not operate properly, with the necessary safety precautions in place, or follow the regulations, and followed few or none of the regulations and safety standards applicable to the process. (Id. ¶¶ 24-27.) Plaintiff claims Plant Works knew or should have known about the unsafe operations taking place at the subject property, including the violations of numerous codes, laws, and regulations and had the ability and power to cease the operations at the subject property, or require the process to be done safely, but refused to exercise that power or authority. (Id. ¶ 28.) As a result, the fire occurred at the subject property while Plaintiff was present on October 18, 2021, that caused a chain reaction of other fires and explosions that leveled the facility, killed two people, and badly injured Plaintiff. (Id. ¶ 29.)

Because Plaintiff alleges Plant Works is a trustee of defendant trusts and appears to seek to hold Plant Works personally liable for the trusts' conduct, Plaintiff must demonstrate the proper basis for personal liability or trustee liability through his allegations.

"A trustee is personally liable for obligations arising from ownership or control of trust property only if the trustee is personally at fault." (Prob. Code, § 18002.) "A trustee is personally liable for torts committed in the course of administration of the trust only if the trustee is personally at fault." (Prob. Code, § 18002.) A trustee acting in a representative capacity "cannot be held personally liable under section 18001 for any obligation arising from his ownership or control of trust property, nor can he be held personally liable under section 18002 for any torts committed in the course of his administration of the trust, unless the party seeking to impose such personal liability on the trustee demonstrates that the trustee intentionally or negligently acted or failed to act in a manner that establishes personal fault." (Haskett v. Villas at Desert Falls (2001) 90 Cal.App.4th 864, 877-878 [citing Prob. Code, §§ 18001 18002].) Allegations that the trustee

controlled the trust property is insufficient to establish personal liability. (Id. at pp. 878-879.)

Plaintiff alleges direct personal liability against Plant Works but does not allege that Plant Works was working in its representative capacity. Moreover, the Complaint's allegations indicate the defendant trusts and Plant Works performed the same negligent conduct in creating a dangerous condition. At most, Plaintiff's allegations are conclusory and do not allege specific negligent or intentional conduct by Plant Works or its representatives, officers, or other party acting on Plant Works' behalf. Thus, Plaintiff fails to adequately allege personal liability or fault as to Plant Works on the negligence and premises liability claims. The same issues apply to the strict liability cause of action because Plaintiff alleges the trusts' conduct and Plant Works' conduct are the same. (See Compl. ¶¶ 51-54.) However, Plaintiff does not allege any specific conduct by Plant Works or its representatives, officers, or other party acting on Plant Works' behalf which created the ultrahazardous condition.

If Plaintiff wishes to hold Plant Works directly liable for conduct within its role as representative or administrator of the defendant trusts, Plaintiff must provide further factual allegations showing as much or amend the Complaint to allege the claims against Plant Works as a separate entity and in its representative capacity.

Therefore, the court sustains defendant Plant Works' demurrer for uncertainty and failure to state a claim to the Complaint's First, Second, and Third Causes of Action.

2.
Plaintiff's newly discovered information is sufficient to allege liability against defendant Plant Works.

Plaintiff asks the court for leave to amend the Complaint to add new facts Plaintiff has learned during discovery concerning Plant Works' relationship with now deceased David Bruch and defendant Canna Systems Holding, Inc.

Plaintiff claims he recently learned that Plant Works had a service contract with defendant Canna Systems Holding, Inc. to provide engineering services for the cannabis extraction operation at the property, including

providing surface area pumps and design and process-engineering services. (Declaration of Christopher S. Kim ¶ 5.) Plaintiff also asserts Plant Works provided defendant

Canna with an organic chemist, David Bruch, to oversee, manage, and control extraction operations at the subject property.

(Ibid.) Based on this,

Plaintiff believes Mr. Bruch may have been responsible for causing the explosion and lost his life. (Ibid.)

Plaintiff presents a copy of the executed service

agreement between Plant Works and Canna Systems Holdings, Inc. dated September

22, 2021, and executed by Chris Salinas and David Bruch on October 1, 2021. (Kim Decl. ¶ 11, Exh. C [marked as Exhibit 1 to the deposition of Sarah Bruch].)

According to the agreement, Plant Works was engaged by Canna Systems in order to assist with “developing certain processes related to cannabis/hemp processing systems utilizing R134 as an extractant and synthesis conversions of CBD feedstock to THC-O acetate, hexahydrocannabinol (HHC) and other compounds (the ‘Services’).” (Id., Exh. C

at p. 1, ¶ C.) Plant Works’ services

included communicating with Canna’s operators about site preparation; Plant Works’ chemical engineer, Mr. David Bruch, would go to the location designated by Canna and process three hundred liters of CSG delta 8 into THC-O acetate; and Plant Works would train the employees Canna designated to process its isolates into delta-9-tetrahydrocannabinol. (Id.,

Exh. C at pp. 1-2.) The agreement does

not specify the address of the subject property at issue in this matter. However, Sarah Bruch testified at her deposition that at the time of the fire, Mr. Bruch was working as an employee for Plant Works. (Id., Exh. F at

p. 19:18-22.) Ms. Bruch also testified

that while Mr. Bruch worked at the subject property, he took direction from an individual identified as Savino, the lead chemical engineer at Plant Works, on how to correct problems with machinery.

(Id., Exh. F at pp. 50:11-18, 169:16-25.)

Plaintiff also presents three memos about Mr. Bruch which

were authored in 2020 by the human resources department at ExtracTech in Nevada,

showing disciplinary action against Mr. Bruch before the alleged incident. (Kim Decl., Exh. E [February 20, 2020 and March 3, 2020].) The memos reprimanded

Mr. Bruch for smoking inside of a plant in a non-designated smoking area, sleeping on a shift which resulted in a pressure build up and explosion that required an evacuation, and using Extratech’s laboratory equipment for his

personal use to make THC - 0 - Acetate (Delta 9 O-Acetate), a schedule 1 drug which is illegal. (Id., Exh. E.)

According to Plaintiff, the new information and findings demonstrate: “(1) There was an employer-employee relationship between [Plant Works] and David Bruch; (2) There was a valid service agreement between [Plant Works] and Canna Systems Holding, Inc. that was in effect at the time of incident and directly related to cannabis extraction, distillation, and conversion facility at issue; (3) [Plant Works] supplied the equipment directly linked to the subject extraction operations; (4) Causation: David Bruch directed the correction of [Plant Works] machinery issues shortly prior to the subject explosion and fire that caused his death; and (5) David Bruch, on behalf of [Plant Works], played a direct and leading role in the subject cannabis extraction process at the property.” (Kim Decl. ¶ 6, Exh. F.)

Based on the newly discovered information and Plaintiff's proposed allegations, Plaintiff can amend the Complaint to properly allege direct and vicarious tort liability against Plant Works based on David Bruch's conduct, David Bruch's employment with Plant Works, and Plant Works' alleged agreement with Canna. However, the court is unclear how this new theory of liability comports with Plaintiff's current theory that Plant Works is liable as a trustee of the defendant trusts in leasing the subject property to Canna for performing an ultrahazardous activity.

If Plaintiff can clarify this issue and amend the Complaint to include liability against Plant Works based on its contract with Canna and Mr. Bruch's own conduct as an employee of Plant Works, the court believes Plaintiff can cure the uncertainty and failure to state a claim defects defendant Plant Works has raised in its Demurrer.

Therefore, the court grants Plaintiff leave to amend the Complaint.

CONCLUSION and ORDER

Defendant Plant Works Group, Inc.'s demurrer for uncertainty and failure to state a claim is sustained with leave to amend as to the First, Second, and Third Causes of Action.

Plaintiff may file and serve an amended complaint within thirty (30) days of the issuing of this order.

Defendant Plant Works Group, Inc. to give notice.